

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK-----X
DIANE C. DESOUSA and
THOMAS E. DESOUSA,

Index No.600371/2021

Plaintiffs,

**AFFIDAVIT OF
JAMES VENEZIANO**

-against-

Justice Assigned:
Hon. Frank TinariRICHARD A. CALVAGNO II and
PATRICK J. KARCHER,

Motion #002

Defendants.
-----XSTATE OF NEW YORK)
)ss.:
COUNTY OF SUFFOLK)**JAMES VENEZIANO**, being duly sworn, deposes and says:

1. I have personal knowledge of and/or have directly observed events relating to the above-entitled action.
2. I am currently 78 years old and reside at 16 Avery Way, Bluepoint, New York 11772 with my wife, Patricia Schneider.
3. I previously lived at 321 Grand Central Avenue, Amityville, New York 11701.
4. After over 20 years, my wife and I decided to move to Bluepoint, New York because of the constant disruption and obnoxious behavior of our neighbor, Richard A. Calvagno II ("Calvagno").
5. Calvagno lived directly across the street from us. Nearly every morning, between 6:00 a.m. and 7:00 a.m., my wife and I would be startled awake by the excessive and unreasonable sound caused by Calvagno starting, idling, and revving his high-performance Dodge Charger Hellcat. After entering his vehicle each morning, Calvagno would then take off recklessly speeding down the street, causing an even louder disturbance.

6. I have been retired for several years and only wanted to live peacefully and undisturbed with my wife. Until Calvagno purchased this vehicle, my wife and I used to sleep in each morning. This, however, became impossible as the Hellcat caused an explosion in our bedroom each morning.

7. I complained about Calvagno's vehicle to Thomas DeSousa, and his wife, Diane DeSousa, as well as others in the neighborhood. Other neighbors complained to me as well about the excessive and unreasonable disruptions caused by Calvagno.

8. In addition, Calvagno consistently hosted extremely crowded and loud parties that would last all night into the early morning hours the next day. The people who attended these parties constantly flooded the street and parked in front of our home. The constant traffic and congestion made it difficult for us to leave our home or even take walks in the neighborhood

9. Ultimately, my wife and I had enough of the disruption and decided to move from what had been our home for the last 20 years. At 78 years old, I am no longer interested in dealing with conflict. For us, moving was easier than having to confront Calvagno, a much younger man.

10. We also knew that Thomas DeSousa initially attempted to resolve these issues directly with Calvagno, but it was obvious his attempts fell on deaf ears. In fact, Calvagno even escalated his behavior.

I, James Veneziano, affirm this 6th day of June, 2024, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.

*Subscribed before me
this 6th day of June, 2024*

James Veneziano
James Veneziano

JOHN N. CUOMO
Notary Public, State of New York
Qualified in Suffolk County
No. 02CU6359242
My Commission Expires May 1, 2025